

Transport Policy

Aim

To ensure the safety of all children and adults while using public or private transport, including any vehicles owned by the service.

Implementation

The safety of each child and all employees is paramount. Transportation can pose additional risks for children depending on the mode of transport involved, how it's used and the way children move between the transport and service or other environment. The service we provide includes times when we transport children, or arrange transportation, between the service and another location, including their home, school or excursion destination. The Nominated Supervisor and educators will always follow service procedures to minimise this risk including those which follow.

The Nominated Supervisor will include the Transport Policy and Procedures in staff inductions and ensure all relevant staff receive practical training in relation to the requirements. Where children are regularly transported they will also diarise to rehearse the procedures at least once every 3 months, and maintain written records of the rehearsals and staff training.

Risk Assessments

This section of the Policy does not include transport of children on excursions as risk assessment requirements for excursions are covered in the Excursion Policy.

The Nominated Supervisor or educators will always complete a risk assessment to identify, assess and remove or reduce risks the transport may pose to the safety, health and wellbeing of and each child before children are transported unless the arrangement is 'regular transportation' (ie transportation where the circumstances are substantially the same on each occasion) and a risk assessment has been completed within the last 12 months. The risk assessment will cover:

- the proposed route and duration of the transportation
- the proposed pick-up location and destination
- the means of transport
- any requirements for seatbelts or safety restraints under the relevant state/territory law (for regular transportation consider whether this needs to be assessed more often than every 12 months if child grows etc)
- any water hazards
- the number of adults and children involved in the transportation
- the number of educators or other responsible adults that is appropriate to provide supervision and whether any adults with specialised skills are required, given the risks involved
 - consider children's ages, whether or not they are mobile, and whether any have additional needs

- whether any items should be readily available during transportation (eg a mobile phone and list of emergency contact numbers for the children being transported)
- the process for entering and exiting the education and care service premises and the pick-up location or destination
- procedures for embarking and disembarking the transport, including how each child will be accounted for.

The Nominated Supervisor will nominate, as part of the risk assessment control measures:

- the driver (if using vehicle owned or operated by service)
- the lead educator/supervisor responsible for ensuring an excursion runs smoothly and children are adequately supervised, or for supervising children during trips that are not excursions
- the checker responsible for checking vehicle at end of trip (may be same as lead educator/supervisor).

The Nominated Supervisor will update risk assessments for regular transportation and obtain new authorisations from parents/guardians when circumstances that may affect transport arrangements change, including for example:

- weather conditions (summer versus winter, extreme weather events like heatwaves, floods and bushfires)
- changes in routes for example because of road works
- the numbers and vulnerabilities of children.

Authorisations for Transportation

This section of the Policy does not include transport of children on excursions as authorisation requirements for excursions are covered in the Excursion Policy.

Authorisation for a child to be transported must be given by a parent or other person named in the child's enrolment record as having authority to authorise transportation of a child unless the arrangement is 'regular transportation' and there's an authorisation which is less than 12 months old. The authorisation will include:

- the child's name
- the reason the child is to be transported
- if it's regular transportation, a description of when the child is to be transported
- if it's not regular transportation, the date the child will be transported
- a description of the proposed pick-up location and destination
- the means of transport
- the period of time during which the child is to be transported
- the anticipated number of children likely to be transported
- the anticipated number of staff members and any other adults who will accompany and supervise the children
- any requirements for seatbelts or safety restraints under the relevant state/territory law
- advice a risk assessment has been prepared and is available at the service
- advice written policies and procedures for transporting children are available at the service.

Transport Guidelines

This section and the rest of the Policy covers all situations where we transport or arrange transportation of children, including excursions. Where relevant, the guidelines and procedures in this Policy will also be used to educate children, families and the community about safely transporting children and related issues like road and pedestrian safety.

Drivers

The Nominated Supervisor will ensure persons are safe, responsible drivers before allowing them to transport children. The Nominated Supervisor will nominate the driver (if not using a commercial transport company) and ensure they are not included in ratios or responsible for supervising children as they cannot provide adequate supervision while operating the vehicle. In addition (if not using a commercial transport company) they will:

- make sure there are relief drivers available to fill in for any regular drivers
- keep copies of licenses and driving records which are less than 12 months old for drivers they approve to transport children and make sure drivers:
 - are at least 18 years old and fully licensed (no L or P plate drivers)
 - have a suitable driving history eg statement of demerit points
 - have proof of valid insurance and registration
 - are familiar with the first aid kit contents
 - can operate the fire extinguisher if required
 - have a clear working with children check if required
 - understand they must always comply with the road rules (eg no speeding or touching mobile phones)
 - understand they are responsible for paying any fines they incur
 - understand they must have a zero blood alcohol level when driving children
 - understand they must report any driving convictions incurred since the Nominated Supervisor reviewed their driving record
 - understand in relation to a vehicle operated by the service they must:
 - report any damage or maintenance needs to the Nominated Supervisor
 - ensure there's enough fuel to complete the trip (eg refuel when the tank moves below half full) and never refuel when children are in the vehicle.

Where bus companies are hired to transport children the Nominated Supervisor will discuss the company's policy on driver qualifications, driving history and maintenance procedures etc. to make sure they have reliable and consistent safety processes in place.

Safety Restraints

Seatbelts and restraints systems will be used as outlined in this policy which is based on the National Road Rules. We note the Australian Design Rules set out vehicle safety requirements including requirements for seatbelts and child restraint anchorage points.

Educators will assist motor vehicle drivers and bus drivers to ensure each child is transported safely at all times. The service understands that drivers of small vehicles carrying up to 12 people are responsible for road safety and ensuring each child under 16 is properly seated and restrained. All

educators, however, have an equal responsibility to assist the driver and check that each child is seated and restrained appropriately using the following guidelines.

Vehicles built to carry up to 12 people including the driver

Generally educators and volunteers will follow the restraint arrangements which follow to ensure the safety of children. However, if a child is too small for a restraint specified for their age, they will be kept in their current restraint for as long as necessary. Likewise, if a child is too large for a restraint specified for their age, they may move to the next level of restraint.

Educators and volunteers will also comply with any current medical plans or certificates signed by a registered medical practitioner that states the child should not be restrained as outlined below while travelling in a vehicle (or bus) for medical reasons. Educators and volunteers will comply with the conditions in the medical certificate, and where possible, ensure the child travels in a rear seat. Medical certificates must have an expiry date.

The Approved Provider or Nominated Supervisor will ensure all safety restraints are safe, labelled with Australian Standard (AS/NZS1754) (restraints purchased overseas do not comply with Australian Standards and are not compatible with Australian vehicles), and have been professionally installed or checked by authorised fitter. They will also ensure there are sufficient restraints to meet the safety restraints requirements under the national Road Rules as detailed below.

Educators and volunteers will ensure:

- Each child under seven is secured in a child restraint or booster seat with seat belt or safety harness when travelling
- Babies up to six months of age are restrained in a rearward facing restraint with a built in 5 or 6 point harness
- Children from six months to under four years are restrained in a rearward restraint, or forward facing restraint with a built-in 6 point harness. Rear facing restraints offer better protection as long as the child fits in it
- Children from four years to under seven use a forward facing restraint or booster seat. A forward-facing child restraint offers better protection as long as the child fits in it
- Children under four years are not in the front row of a vehicle with two or more rows
- Children from four to under seven years only sit in the front row of a vehicle with two or more rows if all other seats are occupied by children the same age or younger in an approved restraint
- The number of children transported does not exceed vehicle rated seating capacities
- Children do not share a seat belt or child restraint
- All adults use available safety belts.

Buses

Buses are defined as vehicles built to carry over 12 people including the driver. The Nominated Supervisor, educators and volunteers will:

- ensure seatbelts/restraints are used if they're required to be fitted
- ensure seating capacity displayed on the compliance plate is not exceeded
- consider whether an alternative mode of transport should be used to ensure children's safety where restraints are not available.

Transport Procedures

To ensure children's safety all employees and volunteers will implement the **Transport Procedure** or **Transport Procedure Excursions** when transporting children to and from destinations. Under no circumstances will any child be transported if all of the guidelines and procedures in this Policy are not met.

Maintenance

To ensure vehicles owned or operated by the service are safe and hygienic, where relevant the Nominated Supervisor will:

- follow the recognised service schedule and organise an annual mechanical inspection, or sight evidence vehicle has had mechanical inspection within the last 12 months
- look for obvious maintenance issues eg bald tyres
- pay insurance, registration etc or sight evidence vehicle is registered and insured
- ensure check oil, water and tyres every month
- ensure vehicle is regularly cleaned
- ensure children can't access vehicles when they're not being used.

Car Park and Driveway Safety

Young children are at risk from moving vehicles in low speed 'off road' locations such as driveways and car parks. Studies have shown for example, there are large 'blind zones' behind many vehicles where drivers cannot see what's happening. The Approved Provider, Nominated Supervisor and staff will implement measures to remove or control the risks posed by any car park on the premises. They will complete a risk assessment to identify and control risks and may implement measures such as:

- speed signs with maximum car park speed limits
- parking signs advising parking limited to eg 5 minutes or reverse parking required
- one way signs so all vehicles drive through car park in the same direction
- witches hats to control/block access in particular areas
- supervising area during drop offs and pick ups
- encouraging people collecting children to walk around vehicle before they leave.

Road Safety

Educators understand that children are vulnerable road users. They may think they can handle crossing a road by themselves but:

- are easily distracted and focus on only one aspect of what is happening
- are smaller and harder for drivers to see
- are less predictable than other pedestrians
- cannot accurately judge the speed and distance of moving vehicles
- cannot accurately predict the direction sounds are coming from
- are unable to cope with sudden changes in traffic conditions
- do not understand abstract ideas like road safety
- are unable to identify safe places to cross the road
- tend to act inconsistently in and around traffic.

Educators will closely supervise all children when outside the service near roads. They will hold children's hands, or if not practical to do this for all children, implement measures which keep children safe eg encourage children to hold hands in pairs. Have an educator at the start and end of the line of children. Other procedures could include, offering children to hold on to a rope at all times, or wearing high visibility vests.

Educators will regularly integrate learning about road safety into the curriculum. They will also provide information to families about children and road safety including:

- the key role families have in educating their children about road safety and the close supervision children require in and around traffic to keep them safe
- opportunities in day-to-day routines to discuss road safety with children eg on the way to the shops, service or school, while crossing roads (when and why it is safe to cross)
- the dangers involved in leaving children unattended in cars
- danger areas like car-parks, traffic lights, pedestrian crossings and driveways. In relation to driveways, it's vital to:
 - *always supervise children* whenever moving a vehicle ie hold their hands. *Put children securely in the vehicle with you* if you're the only adult around, even if moving just a small distance
 - *Encourage children to play in safer areas away from the driveway & cars.* The driveway is like a small road and should not be used as a play area
 - *Make child access to the driveway difficult* eg use security doors, fencing or gates.

Related Policies

Excursion Policy

Sources

National Quality Standard

2.2.1 Supervision - Supervision At all times, reasonable precautions and adequate supervision ensure children are protected from harm and hazard.

6.2.1 Transitions - Continuity of learning and transitions for each child are supported by sharing relevant information and clarifying responsibilities

Education and Care Services National Regulations

4 Definitions

99 Children leaving the education and care premises

102B Transport risk assessment must be conducted before service transports child

102C Conduct of risk assessment for transporting of children by the education and care service

102D Authorisation for service to transport children

168 Education and care service must have policies and procedures (transportation)

Other

National Road Rules Model

National Guidelines for Safe Restraint of Children Travelling in Motor Vehicles – Kidsafe

Review

The Management, Employees, Families and interested parties will monitor and review the effectiveness of this Policy regularly. Updated information will be incorporated as needed.

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| <ul style="list-style-type: none"> Reviewed by: Elizabeth Price
Date: 09/02/2022 | Position: Nominated Supervisor
Signature: |
| <ul style="list-style-type: none"> Accepted by Committee Member:
Date: | Position:
Signature: |
| <ul style="list-style-type: none"> Previously reviewed: 24/04/2018 | Date for next review: 09/02/2024 |